Safe Arms For Newborns	Number	Page
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Revision Date:
05/01/2018

Background:
The Safe Arms for Newborns Law was enacted to provide for the health and safety of unwanted newborn children. Under this law, any child less than seventy-two hours old, who is voluntarily surrendered to an employee on duty at a public or private hospital emergency room, will be determined eligible to Medi-Cal. The law also requires that the hospital taking physical custody provide a medical screening examination and any necessary medical care to the child.

Included with the reformatting, this section is being updated to include application process clarifications issued in ACWDL 03-26E.

Purpose:
This section provides instructions regarding the processing of cases under the Safe Arms for Newborns Law.

Policy:
The Department of Health Care Services (DHCS) has issued instructions for hospitals and for county Medi-Cal eligibility staff regarding the Safe Arms for Newborn Law.

A. Hospital Instructions
DHCS has instructed hospitals as follows:

- Upon taking physical custody of surrendered newborns, give these children a medical screening examination and provide them any necessary medical care.
- The hospital employee taking physical custody of the newborn must enter the identification number from the child's hospital ankle bracelet in the "ID number" field in the top right corner of the MC 356, "SAFE ARMS FOR NEWBORNS Medical Questionnaire."
- The hospital taking physical custody of the newborn must offer the person surrendering custody the MC 356.
- The person surrendering the child is not required to complete or return the MC 356.
- The parent names may not be requested.
- A hospital that receives a surrendered newborn must initiate a request for Medi-Cal for that child no later than the following business day.

B. County Instructions
DHCS has instructed counties as follows:

- County eligibility staff are responsible for completing the application and SOF.
- When actual names and birth dates are unavailable, use the health facility identification information and estimated date of birth, if available, in establishing the Medi-Cal eligibility record.
- For the purposes of this program, assume that the newborn is a United States citizen.
- A child support referral to the Department of Child Support Enforcement is not required.
- Upon granting, provide the health facility with the information necessary to obtain reimbursement for care provided to the newborn as soon as eligibility is established.

C. Period of Eligibility
Under this law, eligibility begins the day of surrender and extends through the last day of the following month. However, if a child is surrendered on the last day of the month, eligibility may continue through the third month. For example, if a child is surrendered to a hospital on the March 15, eligibility extends through April 30. If the surrender date is March 31, eligibility may be extended through May 31. In no circumstance will coverage under this category extend past the last day of the third month.

Newborns determined eligible to the Safe Arms for Newborns Program are not eligible to continuing Medi-Cal benefits through the Deemed Eligibility Program for infants or the Continuous Eligibility for Children Program. Continuing eligibility for the child will be established under normal program criteria at the time that the child either enters the foster care system or is placed with a responsible relative or caretaker.

D. Aid Code
These children are to be placed in a new zero share of cost aid code 2A. This aid code will be used by DHCS to track cases opened under the Safe Arms for Newborn Law.

E. Surrendered Newborns Not Covered Under the Safe Arms for Newborns Program
Surrendered newborn babies, not covered under the Safe Arms for Newborns Program, are handled on a case-by-case basis using formerly established procedures. Refer to Desk Aid 87 for case examples.

Procedure:
F. County Required Action
When processing a request for Medi-Cal for a surrendered newborn less than seventy-two hours old and the actual name and date of birth of the newborn are unavailable; complete the application and SOF as an immediate need using the hospital identification information and estimated date of birth. For example, if the hospital has assigned a name for identification purposes, such as “Baby Doe BBB” or “Abandoned Baby AAA,” these are acceptable and searchable on MEDS. Names cannot contain numbers, only letters can be used.

Important Note:
Treat these cases as confidential cases.
- Do Not use parent’s name, social security number, or dates of births, if known.
- The case number assigned is not to be used once Safe Arms for Newborns eligibility ends.
- Do Not bank these cases to continuing.
- Intake is responsible for holding the case for the period of eligibility.

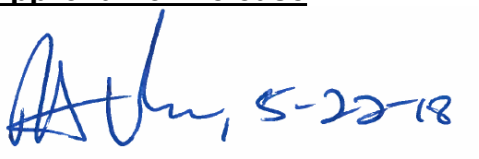
Program Impact/s:

Automation: In the "Selected" group box for all programs, click the Emergency checkbox. Then select the Safe Arms for New Borns Benefits checkbox.

References:
ACWDLs 01-48, 03-26, 03-26E

Sunset Date:
This policy will be reviewed for continuance by 05/31/2021

Approval for Release:



Rick Wanne, Director
Eligibility Operations